

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 23, 2019

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Luna moved to approve, seconded by Mr. Case. Mr. Shanor declared a conflict of interest (business affiliation with agenda item #15) and abstained from voting. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no” and Mr. Shanor who didn’t vote.

[CA] Minutes from Regular Meeting of the Governing Body on September 9, 2019. Motion (per Consent Agenda) carried.

Mr. Roybal moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne, Mr. Cook and Mr. Shanor Voting “no”.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from MUB Mixed-Use Business Emphasis to NR-3 Neighborhood Residential – High Density for Lots 1-9, Block 1, North Gate Village, Cheyenne, Wyoming (located at the northwest corner of the intersection of Yellowstone Road and Prairie Hills Drive). Reporting for Public Services Committee, Dr. Rinne moved to approve on second reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Vacating all of that 15’ alley right of way within Block 13, Arp Addition, Fifth Filing, City of Cheyenne, Laramie County, Wyoming, (located north of and adjacent to Leisher Road, east of Cribbon Avenue). Dr. Rinne moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 1st READING – Amending Chapter 2.04, Mayor and City Council, within Title 2, Administration and Personnel, and Chapter 3.04, Fiscal Provisions Generally, within Title

3, Revenue and Finance, of the Municipal Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsors – Mr. Case, Mr. Cook, Dr. Rinne and Mr. Shanor)

RESOLUTION – Supporting the City of Cheyenne to complete the Avenues Greenway Connector Trail between Evans and Airport Parkway and supplement available WYDOT TAP Grants with 6th Penny Tax Receipts (6th Penny Greenway Funds) (Postponed from 9/9/2019). Reporting for Finance Committee, Mr. Luna moved to adopt, seconded by Mr. Case. Mr. Luna moved to postpone to October 14, 2019, seconded by Mr. Cook. It was noted City Council members received an email from the Planning and Development Department advising there is an impasse as the location isn't viable at this time therefore, requesting the item be voted down. Motion to postpone failed. Voting "no" – all members of the governing body. Upon inquiry, Charles Bloom, Planning and Development Director, reported staff will evaluate different routes that can be utilized to connect Evans Avenue to Airport Parkway. He further explained there are issues with using airport property and staff is looking at a possible agreement with Olivet Cemetery for utilization of their pathways using current infrastructure. Comment was made that moving from Pershing is preferable. Motion failed. Voting "no" – all members of the governing body.

RESOLUTION – Granting an exception to the "201 Agreement" for the owner of the property located at 7615 E. Pershing Blvd. to allow repair or replacement of an on-site septic system located within Laramie County. Dr. Rinne moved to adopt with Staff Condition #1, seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body. (#6014)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for the Sweetgrass 2nd Filing Subdivision for a portion of the north half of the northeast quarter of Section 16, Township 13 North, Range 66 West of the 6th Principal Meridian and including a Replat of all of Block 3 (Lots 1, 2 and 3 inclusive) of the Sweetgrass 1st Filing Subdivision, City of Cheyenne, Laramie County, Wyoming (located south of W. College Drive, east of Avenue C). Motion (per Consent Agenda) carried. (#6015)

[CA] RESOLUTION – Authorizing a street name change from "Snyder Avenue" to "South Snyder Avenue" for the portion of a street located between Interstate 80 and West Allison Road, City of Cheyenne, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#6016)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming Water Development Commission for grant funding for the North City Zone Improvements Project in the amount of \$8,040,000.00 and authorizing the Mayor, the City Clerk and the Director of the Board of Public Utilities to execute the application and all related documents. Motion (per Consent Agenda) carried. (#6017)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming State Loan and Investment Board for a loan from the Wyoming Drinking Water State Revolving Fund for an amount not to exceed \$3,960,000.00 for the North City Zone Improvements Project and authorizing the Mayor, the City Clerk and the Director of the Board of Public Utilities to execute the application and all related documents. Motion (per Consent Agenda) carried. (#6018)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for North Gate Village, 2nd Filing, a Replat of Lots 7-9, Block 1, North Gate Village, Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Yellowstone Road and Prairie Hills Drive) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] Agreement between the Wyoming Department of Transportation (WYDOT) and the City of Cheyenne, Transit Program, for a Wyoming Rural Public Transportation Grant to assist in providing a local match for operation funds for the Transit Program for Fiscal Year 2020 (revenue to the City). Motion (per Consent Agenda) carried (in an amount not to exceed \$112,290.00 (revenue to the City)). (#7077)

[CA] Purchase and Sale Agreement between Timothy and Kimberly Cilek and the City of Cheyenne, for the purchase of real property described as Lot 1, Block 10, Leisher Black Addition, 2nd Filing, more commonly known as 101 Columbus Drive, in the City of Cheyenne, Laramie County, Wyoming, for the appraised value of \$209,000.00 (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$209,000.00). (#7078)

[CA] Lease Agreement between the City of Cheyenne and Visionary Communications Inc. for wireless antenna tower space located at Fire Station No. 2, 514 W. Fox Farm Rd., Cheyenne, Wyoming, and the Cheyenne Public Safety Center, located at 415 W. 18th Street, Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#7079)

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO) and West Edge Collective, LLC, Cheyenne, for Fiscal Year 2020 MPO Public Engagement and Web Support Services (MPO Federal Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$44,800.00). (#7080)

Professional Services Agreement between the City of Cheyenne and Inberg-Miller Engineers, Cheyenne, for engineering services for design of the 2020 Pavement Management Project (2015-2018 1% Sales Tax). Mr. Luna moved to approve in an amount not to exceed \$81,600.00, seconded by Mr. Case. Mr. Luna moved to amend by requesting a work session with the governing body and Engineering Department regarding the Pavement Management Plan prior to any engineering services being performed on this contract, seconded by Mr. Shanor. Comment was made in support of a work session. Upon inquiry, Mr. Luna explained the proposed amendment would allow the agreement to be approved, however, a work session would be held prior to work being performed on the contract. Michael O'Donnell, City Attorney, further explained the idea is to approve the dollar amount of the agreement but hold off implementation until a work session has been held and advised delaying implementation would not affect the agreement. Upon inquiry, Kris Jones, City Clerk, clarified the motion on the floor. General comments were made in support of a work session and concerns were raised regarding the normal protocol of requesting work sessions which are to be requested and approved through the Council President. Ms. Jones further clarified the amendment motion and reported agenda items cannot be postponed for longer than 2-weeks or until the next regularly scheduled City Council meeting. Comments were made on the long-term management program and how it is aimed at developing a city-wide system for road management, support for work sessions and alternative options for

requesting work sessions. Motion to amend failed. Voting “no” – all members of the governing body with the exception of Mayor Orr and Mr. Laybourn voting “yes”. Mr. Case moved to postpone to October 14, 2019, seconded by Mr. Shanor. Motion to postpone carried. Voting “yes” – all members of the governing body with the exception of Mayor Orr, Mr. Laybourn and Dr. Rinne voting “no”.

[CA] Contract between the City of Cheyenne, Cheyenne Police Department, and the Wyoming Department of Transportation for D.U.I. Mobile Command Task Force enforcement and educational activities (Highway Safety Mobile Command Grant). Motion (per Consent Agenda) carried (amount not to exceed \$55,500.00). (#7081)

[CA] Grant Agreement between the City of Cheyenne, Transit Division, and the Wyoming Department of Health, Aging Division, to provide support services to persons 60 years or older under the Title III-B Program Grant for Fiscal Year 2020 – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7026 between the City of Cheyenne and Simon Contractors, Cheyenne, for the 2019/2020 Miscellaneous Street Repair Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

Consideration of Bid #E-1-20 for furnishing eight (8) new four-door 2020 Model Utility (SUV) Police Interceptors, for the City of Cheyenne, Cheyenne Police Department, (2015-2018 & 2019-2022 1% Sales Tax). Mr. Luna moved to accept the bid from Spradley Barr Motors, Cheyenne, in an amount not to exceed \$455,715.00, seconded by Mr. Case. Upon inquiry, Police Chief Brian Kozak, explained Ford no longer makes sedans for police vehicles and they prefer SUV’s due to various equipment needs. Mr. Luna moved to accept the substitute bid, dated September 12, 2019, from Spradley Barr Motors, Cheyenne, in an amount not to exceed \$461,683.00, seconded by Mr. Cook. Chief Kozak explained the amendment specifically requires a light bar with side visibility and confirmed Spradley was still the lowest bidder with this addition. Motion to accept substitute bid carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook and Dr. Rinne voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook and Dr. Rinne voting “no”.

[CA] Consideration of Bid #E-2-20 for furnishing eight (8) Motorola APX8500 Mobile Radios for the City of Cheyenne, Cheyenne Police Department (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Bearcom/Motorola, Evans, CO, in an amount not to exceed \$48,882.96).

[CA] Consideration of Bid #S-1-20 for a contract between the City of Cheyenne and Scotch Boy, Inc., Cheyenne, for the Irrigation Controllers and Equipment Upgrade Project (Parks Improvements, Maintenance, and R-O-W Operating Cost funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$592,902.96). (#7082)

[CA] Consideration of Bid #S-5-20 for a contract between the City of Cheyenne and STC Construction Co., Cheyenne, for the 2019 Wearing Course Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$199,722.00). (#7083)

[CA] Consideration of Bid #S-4-20 for a contract between the City of Cheyenne and S & S Builders, LLC, Cheyenne, for the Greenway Construction - Powderhouse Segment Project (6th Penny Sales Tax) – referred to Finance Committee.

[CA] Consideration to purchase time clocks from Paycom, Oklahoma City, Oklahoma for the City's payroll and timekeeping software program (Fleet Maintenance, Solid Waste and 1% Sales Tax Funding) – referred to Finance Committee.

[CA] Transfer of ownership for a retail liquor license application filed with the City Clerk's Office for AB Cheyenne, WY, LLC d/b/a/ Applebee's Neighborhood Grill & Bar, 1401 Dell Range Blvd., Cheyenne, Wyoming (license currently held by RMH Franchise Corporation d/b/a Applebee's Neighborhood Grill & Bar). Motion (per Consent Agenda) carried.

Presentation of Revenues. Upon inquiry, Robin Lockman, City Treasurer, reported 2 payments were received and recorded in the same month for the Rail Spur Loan and that typically only 1 payment is recorded in a month. Mayor Orr and Ms. Lockman provided information relating to the Ticketfly Settlement revenue advising Ticketfly pays the City for tickets they sell for shows at the Civic Center.

Under other business:

Mr. White expressed appreciation to members of City staff and the Police Department who both assisted with the recent Cheyenne Marathon. He also congratulated Mark Ellison and Jason Hardy from the City's Forestry Division on the Rooted in Cheyenne Program and reported the 500th tree was recently planted through the program, noting the program is in its 3rd year.

Mr. Shanor moved to take from the table #24 (a) "Consideration of a Bid for a contract between the City of Cheyenne and Simon Contractors, Cheyenne, for the 2019 Pothole Repair Project. (2015-2018 1% Sales Tax)" from the September 9, 2019 City Council agenda, seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body. Mr. Shanor moved to postpone the item until October 14, 2019 and as a condition of said postponement, staff is directed to ask the second bidder, Knife River, if they would like the opportunity to submit an amended bid under the \$250,000.00 amount like Simon Contractors was offered. Said amended bid shall be received by the City no later than 5:00 P.M. on September 30, 2019 and shared with all members of the City Council immediately upon receipt. Staff shall evaluate the amended bid, if one is submitted, and a recommendation will be made to the Finance Committee on October 7, 2019, seconded by Mr. Luna. Mr. Shanor explained he believes the bid process for this project has been fundamentally flawed and commented on emergency procurement policy requirements, lack of transparency and that only one of the two bidders were allowed the opportunity to amend their original bid. He advised members of the governing body have received additional information since the bid was tabled. Mike O'Donnell, City Attorney, expressed concerns relating

to the proposed conditional postponement, advised a motion to postpone cannot contain conditions and that the proposed bid from Simon Contractors was negotiated following the City accepting the bid proposal, reporting it is now a negotiated dollar amount. Motion to postpone with conditions failed. Voting “no” – all members of the governing body with the exception of Mr. Luna, Mr. Roybal and Mr. Shanor voting “yes”. Upon inquiry, Wes Bay, Deputy City Engineer, reviewed various pothole locations (excess of 200) that are recommended for repair and explained if any funding is left over, additional locations will be repaired. Upon inquiry, Vicki Nemecek, Director of Public Works, advised she could compile a cost repair breakdown based on the location and condition of each pothole, noting general cost to repair potholes varies. Discussion continued related to declaration of the project as an emergency and concern of the contract cost including 30% going towards mobilization and traffic management. Mr. Bay provided an explanation of the 3 types of repairs that have been presented. Comments were made related to recent repairs done on Yellowstone Road using an improved repair process, support for the improved process and project, the process of repairing potholes, project opposition due to deviation from current bid processes and the importance of process integrity. Main motion failed. Voting “yes” - Mayor Orr, Mr. Esquibel, Mr. Laybourn and Mr. White. Voting “no” – Mr. Case, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Roybal and Mr. Shanor.

Mayor Orr provided information on Christmas ornaments available for purchase from the Historic Preservation Board and advised proceeds will go towards the restoration of the Airport Fountain and the Historic Preservation Board.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:47p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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